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Trends in Organized Crime
https://doi.org/10.1007/s12117-018-9354-7

Brazilian criminal organizations as transnational violent non-state actors: a case study of the Primeiro Comando da Capital (PCC)

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Published online: 05 November 2018
© Springer Science+Business Media, LLC, part of Springer Nature 2018

Abstract
This article aims to analyze the evolution of Brazilian criminal organization Primeiro Comando da Capital (PCC—First Command of the Capital), especially its transformation from a group advocating human rights to a transnational violent non-state actor. Created in the late 1990s by inmates at Taubate Prison, PCC is currently a key trigger of violence in South America. Since a massive attack performed in 2006 against security forces, the group continues to be highly operative, also coordinating drugs and arms smuggling in Brazil and abroad. A combination of sources supported this analysis of PCC's evolution, mainly Brazilian official judicial minutes, NGOs reports, and news released from reputable sources. The article shows that PCC has gained strength in the 2010s, expanding illicit business operations in cooperation with other criminal groups. The results suggest that PCC's expansion has changed significantly since their beginnings, into an actor that poses a challenge for the building of peaceful society in all of South America.

Keywords Violent non-state actors · Organized crime · Primeiro Comando da Capital · Brazil · Violence · Public security

Introduction

Created in the late 1990s by inmates at Taubate Penitentiary, the *Primeiro Comando da Capital* (PCC—First Capital Command) is a criminal organization known for its attacks against state officers and institutions in Sao Paulo, Brazil. In May 2006, on the orders of PCC leaders (in the prisons' slang, the *sintonia fina geral* – general final

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tune), around 50 prison rebellions and 251 attacks erupted in 1 week, resulting in 90 buses being torched, 453 dead and 53 wounded among police officers, suspects, civilians, and criminals (Adorno and Salla 2007, 7–8; Biderman et al. 2014, 4; Resk 2016). Since then, the group has continued to be highly operative, also expanding its businesses to drugs and arms smuggling across Brazil and abroad (MPF-SP 2015; Neher 2017; Ribeiro 2016).

The social dynamics of PCC within the prisons controlled by the group have been extensively analyzed in the last 10 years (see Bailey and Taylor 2009; Dias and Salla 2013; Dias and Darke 2016; Dias and Salla 2017; Biondi 2017; Biderman et al. 2014; Manso and Dias 2017). Nevertheless, a more thorough analysis is required as to how PCC re-structured and moved beyond prisons to become an important transnational violent non-state actor and therefore transformed into a threat for regional peace in South America (see also Ferreira 2017).

Thus, this article aims to analyze how PCC has changed its operations from a criminal group advocating human rights in São Paulo's prisons to an organization with international reach in drug trafficking and in the use of violent tactics. In doing so, the article will explore a gap in the literature, given the lack of studies on PCC internationalization (see Manso and Dias 2017: 25). The study focuses on the concept of violent non-state actors (VNSA), as will be explained in the next section. A combination of sources supported the interpretative analysis of the case study. Narratives of Brazilian judicial reports—like those provided by the Brazilian Prosecutors Office and General Attorney—were analyzed in combination with specific literature and open sources, especially the reports of the InSight Crime Foundation and reputable newspapers focused on PCC operation since the 1990s.

The article is structured in six parts. After this introduction, the conceptual debate on transnational VNSA as a threat to the rule of law and public security is presented. The third part begins with an explanation of methods and sources applied for research, followed by an explanation of PCC evolution in two categories: the structuring and evolution of PCC, and how the criminal group can be regarded as a transnational violent non-state actor. The concluding remarks summarize the findings and suggest new paths for research on PCC and transnational VNSA.

Defining transnational violent non-state actor

The process of globalization that accelerated after the fall of the Soviet bloc has opened up communications and facilitation of financial transactions for criminal groups, resulting in an increase in illicit activities of different kinds. In addition, globalization has also changed the characteristics of criminal activities, which ceased to be hierarchical and highly centralized, instead becoming organized in networks, emulating licit markets and making crime operations more difficult to tackle (Capie 2016, 213; Zabyelina 2009, 11).

Within this context, the governance standard setting is "no longer the exclusive domain of states or governments" (Peters et al. 2009, 1). A diversity of actors can now communicate more effectively and disseminate new standards of governance. Nonetheless, most troubling is when violent non-states actors establish "norms" for the society and uses oppression tools to achieve their aims, challenging the rule of law and public order.

The simple definition of *non-state actor* is useless if it comprises actors which apparently "only have in common that they are not the state, and not governmental" (Peters et al. 2009, 14). In general, we broadly include trans and multinational corporations, non-governmental organizations, intergovernmental and regional organizations, and violent actors as guerrillas, gangs and criminal groups in the definition. In trying to avoid the ambiguity of the *non-state* concept, this article focuses on a very specific kind of non-state actor: one that operates transnationally and uses violence as a tool to achieve their aims.

While the concept of criminal organization could also be applied to understand PCC (see, for example, Von Lampe 2015; Lessing and Willis 2018), the concept of VNSA can define the organization more precisely. A criminal organization is not necessarily a violent actor. There are cases of crimes that cross borders and have a strong organizational component, however do not necessarily use violence to carry out their acts. According to Von Lampe (2015), the criminal organization has three basic dimensions: activity, structure, and governance. As will be seen in later sections, PCC encompasses these dimensions, but also has the use of violence as a key feature. Thus, while violence is recurrent in some types of criminal organizations, it is not a key feature; this is different to PCC, which is a violent non-state actor.

As is the case of criminal organizations in general, a VNSA also encompasses activity, structure, and governance, but it is categorized as such because it has *violence* as a main feature. As Ulrich Schneckener (2006, 25) suggests, such groups have three additional features. First, they are willing and able "to use violence for pursuing their objectives"; second, they are "not integrated into formalised state institutions such as regular armies, presidential guards, police or special forces"; and third, they possess "a certain degree of autonomy with regard to politics, military operations, resources and infrastructure" (Schenecker 2009, 8).

Moreover, Robert Mandel (2013, 42) defines a violent non-state actor as:

> […] relatively autonomous organizations (not under complete and direct state control) with significant and sustained coercive capabilities for organized violence. This definition contrasts with that of the state – formal political institutions possessing the power to control a fixed bounded territory through enforcement – and excludes critical, normally noncoercive private groups, such as multinational corporations, religious movements, and humanitarian organizations.

According to Phil Williams (2008, 4) and Ersel Aydinli (2016, 3), VNSA are entities that challenge the state's monopoly on the use of violence within a specified geographical territory and its position in international affairs, such as, for example, demanding cooperation with partner countries to tackle a given VNSA. The concept of "ungoverned spaces" implies that because of a perceived absence of the state by population, there is no governance. However, most so-called ungoverned spaces are "alternatively governed spaces" where the governance standard setting is "no longer the exclusive domain of states or governments" (Williams 2008, 6), but that coexists with informal or alternative governance that derives from the VNSA.

Among VNSAs we can find different typologies, such as militias, paramilitary forces, rebels and guerrilla fighters, warlords, terrorist groups, private security forces, and organized criminal groups (see Schenecker 2006, 2009; Mandel 2013; Koonings and Kruijt 2004; Aydinli 2016). Some VNSAs emerge in direct contestation to state authority (e.g. insurgents, rebels, or guerrilla groups), while others will rise in response to the fragmentation of the state's authority and in search of economic and symbolic dominance (e.g., paramilitary groups, youth gangs, and organized crime). Thus, the VNSA concept reinforces the notion that the perpetrator of violence is not the state, different from criminal organizations that, in some cases, can operate jointly with the state. VNSAs contend with the government, both through the violence of their criminal offenses or by weakening their governance capacity in some areas.

Specifically, in the case of Primeiro Comando da Capital (First Capital Command–PCC), we are referring to a VNSA with two additional distinctive features. First, in analyzing the operation of PCC, it is evident that it is a non-state group that operates not only domestically but has branches in several Southern American countries. Thus it can be regarded as a *transnational actor*, given it operates drug trafficking and violent actions (like extortion, killings, and attacks to state officials) not only in its home country, but also in Paraguay and Bolivia, and is allied with violent criminal organizations (the so-called *bandas criminales*) in Colombia. Their business has end consumers in Europe and North America, and uses West Africa as a transit point. Brazilian judicial authorities have reported the use of West Africa by PCC since 2009. According to Paraná State Public Attorneys, joint investigations in cooperation with United States Department of State have proved that drugs arriving in Spain and Portugal first stop in western African countries (Brazil 2009). This trend has continued in recent years, according to some experts and news reports (da Silva 2017: 45; Kawaguti 2014).

Second, PCC not only uses direct violence to make the group dangerous and a threat to the rule of law. In several neighborhoods and regions where PCC is strong, the group does not use armed force (direct violence) as a tool to control at all. Rather, PCC exploits social inequality (or structural violence) to keep it strong—by hiring young poor people to its business—and uses cultural/symbolic violence against others gang groups or *neutros* (neutrals), as seen in the alienation of both in prisons, making it more than a simple armed group.[1] To evoke fear of PCC, the simple threat of the use of force by a criminal organization that paralyzed an entire metropolitan area of almost 20 million inhabitants in 2006 is often sufficient. Therefore, it uses not only physical violence, but also cultural and structural violence to keep control of its activities and undermine the rule of law in areas not controlled by the state.

Given this context, PCC can be defined as a *transnational violent non-state group*. It operates transnationally, uses violence (direct, structural, and cultural) to keep and expand its criminal activities, and has the same features as an armed non-state actor. In other words, it is a group that is not only armed and outside the control of the state, but is also transnational and violent in a broad sense, making use of direct, structural, and cultural forms of violence. Given this setting, the following sections provide an analysis of how PCC re-structured from a criminal group restricted to advocating for prison rights to a transnational violent non-state actor.

[1] For a detailed conceptualization on direct, structural, and cultural violence, see Galtung 1969 and Galtung 1990.

Methods

To examine this particular case, the case study methodology (unique case) was used. As explained by Stake (1995), the case study approach is adequate for analysis of particular cases and puts emphasis on interpretation, the most distinctive characteristic of qualitative inquiry (Stake 1995, 8). The research focuses on analysis and interpretation of the following question:

> *Q_1 — How did Primeiro Comando da Capital (PCC) transform from a prison gang to a transnational violent non-state actor, taking advantage of violence to expand its operations?*

As Frida Möller suggests (2011, 74), when dealing with violence at the level of analysis, news and narratives are two key sources of information for the researcher. It is difficult to conduct field research to analyze an actor as a criminal group, as they act secretively to avoid accountability with criminal law. Thus, a combination of sources was investigated to provide an adequate interpretative analysis made in light of the Peace Research concept of violence. Firstly, the narratives of judicial reports, especially from Brazilian Federal Prosecutors and General Attorney, were examined. Second, news from different sources was explored, with an awareness that "news resources provide unrivalled coverage and amounts of information", however "it is always a good idea to combine news reports with other types of sources" (Öberg and Sollenberg 2011, 71). Among these other sources, publications from experts in organized crime in Brazil and InSight Crime reports, linked to American University (USA), were selected for analysis.[2]

The period chosen is from 2006 to 2016, comprising the year of the striking violence of PCC attacks until the present. Given the study aim to explore the evolution of PCC, the inferences and interpretations are organized subsequently in two categories: a) "Structuring and evolution of PCC" and b) "PCC as a transnational violent non-state actor".

Given the lack of previous studies on PCC's changes towards a transnational violent non-state actor, this article presents some limitations. More research is necessary on the role of the state in PCC's expansion, especially regarding its low presence in poor neighborhoods. In addition, the effects of PCC's expansion in other criminal organizations like Comando Vermelho, Família do Norte, and the gangs in Colombia (the so-called *bandas criminales*) also need more investigation. These are important questions to be addressed in future studies on PCC and crime in South America.

[2] As can be seen throughout the article and as indicated in the references, while more than 40 articles and books were consulted and are referenced for the analysis of PCC evolution, I also made extensive use of news sources in some arguments. Given the novelty of the topic and the lack of studies on PCC expansion beyond Brazilian borders, the use of news reports was important for our analysis. These sources were carefully chosen under strict criteria. First, only news from reputable Brazilian and international news agencies were used, such as O Estado de São Paulo, BBC Brazil, Folha de São Paulo, ABC Digital (Paraguay), UOL and El País. News from InSight Crime, a think-tank linked to an important academic institution, the American University (USA), was also an important source. Second, each piece of news cited was compared with other news, as well as analyzed in light of literature on PCC. News that seemed sensationalist or that provided questionable data/information was discarded. Lastly, to confirm some information, phone interviews were conducted with three journalists from reputable news agencies that have covered PCC in the last 5 years. They kindly clarified some data reported in their news and explained how they got some key information. Moreover, on condition of anonymity, they provided some important data to be used in research in progress about PCC governance.

Structuring and evolution of PCC

The PCC was created on August 31, 1993, in Taubaté penitentiary, Sao Paulo state, by eight prisoners in the *Regime Disciplinar Diferenciado* (RDD - Differentiated Disciplinary Regime),[3] a very rigid rule in which inmates are held in the solitary confinement (Dias and Darke 2016, 217–218). The group began to show its force in rebellions in Hortolândia House of Detention and Tremenbé Penitentiary in 1995. Such rebellions often advocated for better conditions in the prisons and also aimed to avoid (or protest against) transfer of PCC's leaders to other penitentiaries. To achieve that, the group carried out several acts of violence to pressure the state for negotiations, such as holding penitentiary agents hostage and the torture of PCC's rival inmates. It was a mega-rebellion in 2001 organized simultaneously in 29 penitentiaries involving 28,000 prisoners, which impacted authorities and first showed the unique organization of a group neglected by authorities (Adorno and Salla 2007, 4; Pimenta 2006, 193; Bailey and Taylor 2009, 14). According to Dias and Salla (2013, 397), despite the severity of the revolt, the resultant 16 deaths and 77 injured, and the shock of a coordinated mutiny within prisons in different cities, "this mega-rebellion did not exceed the boundaries of the prison facilities".

Five years later, PCC performed an action that spilled the terror of the prisons out onto the streets. In May 2006, the city of Sao Paulo, Brazil—the third most populous metropolitan area in the Americas—was paralyzed by coordinated attacks against authorities and the civilian population. The attacks were prompted by the movement of one of the PCC's leaders, Marco Willians Herbas Camacho (a.k.a. Marcola), and other criminals to maximum-security prisons in Presidente Venceslau. Between 12 and 14 May, on the order of PCC leaders, 51 prisons mutinied, there were 251 terror attacks resulted in 90 buses set on fire and 42 policemen and prison officers were killed.[4] The strong response of the security forces was met with numerous criticisms by the Brazilian press and human rights organizations. In the aftermath of the events, in which military policy used violence extensively against suspects and innocents as retaliation, a total of 493 deaths—451 of them civilians—and 4 disappearances were registered before May 20 (see Adorno and Salla 2007, 7–8; Biderman et al. 2014, 4; Resk 2016). This police violence happened in the form of summary executions during arrests, which also resulted in innocents being killed by agents of the state (Resk 2016).

The violence was controlled after direct negotiations between the Sao Paulo state government and PCC (Bailey and Taylor 2009: 17). Since then, the group has grown its influence in Sao Paulo state and beyond. In Sao Paulo city, for example, research conducted by a group of experts concluded that 7% of the city was under PCC control in 2009, especially in the *favelas*[5] (Biderman et al. 2014, 4). Moreover, while not

[3] Courts can use this rule in the Brazilian criminal law for very dangerous and undisciplined detainees. It lasts up to 360 days and permits the prisoner to have only two daily hours outside the solitary confinement. It also only permits two visits a week. These visits were key to allowing PCC leaders in solitary confinement to give orders to members outside prisons to attack security forces in 2006 and 2012, as well as to organize the rebellions in 2001. Specifically, the lawyers and wives were used to give the orders, known as *salve geral* (general save) in the slang of prisons dominated by PCC.

[4] This event is depicted in the movie *Time for Fear* (directed by Sergio Rezende, Brazil, 120 min).

[5] "Favelas are geographically well delimitated areas of precarious urban dwellings normally – but not always – characterized by the lack of formal property rights over real estate, absence of basic public infrastructure (...) and, more generally, lack of the state presence" (Biderman et al. 2014: 4).

reaching the same intensity as seen in May 2006, PCC performed a series of attacks against policemen in 2012, after a clash between police and criminals resulted in six PCC members being killed. In retaliation, 106 police were killed that year (see Denyer Willis 2015; Estado de São Paulo 2012).

From 2006 to now, an organizational change has been seen in PCC. The expulsion of the vice leader Jose Felício (a.k.a 'Geleião') after disagreements with Marcola made room for the emergence of a new "mission" (Marques 2010, 322–323). According to Karina Biondi:

> Marcola has promoted the insertion of 'equality' into the motto and practices of the PCC, which has undergone profound changes, among which are the extinction of leaders who exercised power over the other members. These transformations—which never cease to be transformed—are as antidotes to any manifestation of command or any relationship that comes to try to change the principle of 'equality' (Feltran et al. 2010)

In that context, the PCC operates within an 'umbrella' of 5 top members called *sintonia fina geral* (general final tune). Below them are the so-called *torres* (towers), criminals that control the areas according to the telephone codes of the region where they live, especially in São Paulo state. In telephone areas that are too large (such as area 11, which involves the entire metropolitan area of São Paulo), there are so-called *disciplinas* (disciplines), an organizational position under the *torres*. There is also a leader of *disciplina* in each jail in São Paulo (Feltran et al. 2010; Manso and Dias 2017). Even though PCC claims there is no a central leadership, Marcola would be the de facto leader of the organization according to state authorities (Marques 2010, 312).

Although at first the structure above may seem hierarchical, in all instances (*finais*, *torres*, and *disciplinas*) positions are actually interchangeable and, in the philosophy of the PCC, all criminals must be prepared to assume a position of leadership for a period, depending on the threat of the security forces against the organization. Hence, "although one PCC member […] is in overall charge of a prison, all managerial decisions are made collectively" and "almost all prisoners participate in the PCC's quasi-legal process of adjudication" (Dias and Darke 2016, 220).

This structure provides a unique code of conduct that establishes the patterns of power interaction in different settings under PCC control. The outsiders of this code are subjected to a cultural violence within prisons, as are the *neutros* (prisoners not affiliated to PCC) and gang members of other groups. The alienation of these individuals can easily move towards direct violence, depending on a given context, like a rebellion, a conflict for power between factions, or a clash between prisoners and penitentiary agents.

Furthermore, the PCC not only has a specific power structure, but also a consistent ideology constructed throughout the years that is adapted according to new contexts. With the motto "liberty, justice and peace", the *Estatuto do PCC* (PCC Statute) that has circulated widely in several press agencies since the 2006 attacks, reinforces 'loyalty' to the founders of the group and addresses critics to the public policies—or the lack of them—in the Brazilian prison system. Prisons are called 'concentration camps', similar language to that used by another criminal group, *Comando Vermelho* (CV—Red Command) (CMI 2006).

Reading PCC's statutes (see Feltran 2018), it becomes clear that the inspiration for their language comes from left wing groups' operatives in the 1960s and 1970s, as seen in the jargon and terms used. This inspiration comes in two ways. First, one of the leaders, Marcola, is admittedly a criminal concerned with using his time in jail to read political and militant writings, although he does not label himself as a Marxist or similar. On the other hand, the Chilean kidnapper, Maurício Hernandez Norambuena, had a strong influence at the beginning of PCC history, especially through contact with leaders of the faction.[6] According to Fátima Souza, a journalist with extensive experience covering PCC activities, Norambuena "(…) taught to PCC some of the guerrilla tactics they learned from the Colombian FARC" (Souza 2011), especially when jailed together with some *sintonia final geral* members in the penitentiary of President Bernardes in 2006.

Since 2016, the PCC has become an organization that operates beyond the prisons where it emerged. Its structure has allowed it to have control over drug trafficking in different parts of Brazil, either directly or indirectly. One of the tactics that PCC used to consolidate its hegemony in certain territories was eliminating rival groups. To reach hegemony over the prisons, the strong use of direct violence was needed. As explained by Dias and Salla (2017, 22):

> At first, direct and explicit physical violence, including murder, had enormous symbolic power and was an important strategy to demonstrate the group's strength. Eventually these means of the use of violence gave way to more streamlined forms of punishment in which violence—although always present—was subsumed in control practices on the body, on the behavior, on the thinking. In this process physical violence, especially death, was gradually established as a possibility and not as a *fait accompli*.

Merging their learning from other criminals and a growing structure after it became hegemonic in the prisons of Sao Paulo state, there was a spillover from one social space—the prisons—to another, as the PCC's acceptance become easier given the negligence by the Brazilian state. As summarized by Graham Denyer Willis:

> Recognized for its relative fairness, it influences everything from the fairness of lineups on family visitation day at prisons to the rules in prisons where not a single baptized PCC member is housed. When I did research in a PCC-controlled community, residents claimed they could sleep worry free with their doors and windows unlocked. This was something entirely new […]
>
> The PCC's legitimacy is thus deeply woven into social relations. Those who live under this system engage in a form of self-governance. Even where PCC is not explicitly present, its norms are. The PCC notion of right and wrong is transcendent and diffuse both for those understood to be within the "família" [Family], meaning not necessarily the *irmãos batizados* [baptized Brothers], but also for all of those people living under the PCC's code (Denyer Willis 2015:58).

[6] Mauricio H. Norambuena was head of the Chilean leftist group Front Patriotic Manuel Rodrigues (FPMR). He fled to Brazil in 1996 and was the leader of the kidnapping of the businessman Washington Olivetto in 2001. He is currently jailed in Campo Grande, Brazil.

In addition, the creation of *debates* (i.e., trials conducted according PCC code) emerged, with the function of taking corrective procedures against individuals who are an obstacle for the criminal organization. The *debates* often serve to eliminate enemies of the faction, such as prison agents who no longer cooperate, members who betray, and individuals involved with crimes not allowed by the code of conduct of the PCC, like rape of women, pedophilia, and corruption/misconduct in the financial management of drug trafficking.

Although the existence of PCC *debates* was known in prisons (see Marques 2010), it became public knowledge in April 2008 when the press reported the killing by sword hits of 4 pedophiles in São Paulo city. Numerous other similar crimes of the PCC *debates* have since been reported and investigated, especially after the arrest of the main leader of the 'tribunal of crime', Luciano Rodrigues, in 2010. Within this context, in addition to the state and legal justice, a resident of territories under PCC control:

> tends to identify as instances of authority capable of doing justice (...) members of "crime" and, above all, of the PCC, progressively legitimized as custodians of the "law" (also called "*ética*" [ethics], or "*proceder*" [proceed]), based on customs that govern the conduct of the "bandits" wherever they live, or by slum dwellers in which they are considered as authorities (Feltran 2010, 59)

In some *quebradas* (neighborhoods) with a high crime rate, the *debates* are seen as positive by the population (Feltran 2018), due to lack of state control and police truculence. In other words, it is seen as an effective response to the state's failure. Quantitative works see, in different ways, a possible correlation between *debates* and the homicide rates in São Paulo. On the one hand, for Biderman et al. (2014, 15), the homicide rate dropped 7% in *favelas* dominated by PCC. On the other hand, Justus et al. (2018) suggest that the PCC 'courts' would not be the main variable in homicide rates decreases, and that more research about the issue is necessary. Independently of this data, the fact is that several areas under PCC control have gradually seen the substitution of an inefficient state monopoly of force by a violent non-state actor operating with a parallel law respected, and sometimes feared, by the population, who sees the group as more reliable than an oppressive state represented by police. Consequently, the "tribunals of crime" can be seen as a symbol of consolidation of PCC violence in which direct violence not only becomes the law de facto, but also effectively disseminates the organization's perspective on how to use violence.

Paradoxically, "it is the certainty of the use of violence, inherent to a scenario of consolidated power, which makes its actual use unnecessary" (Dias and Salla 2017, 22). Furthermore, it is precisely this consolidation of power controlling drug trafficking in the wealthiest state of Brazil, São Paulo, which makes the gradual expansion of a local violent non-state actor to a transnational one possible.

PCC as a transnational violent non-state actor

After PCC's 2006 attacks, there has been an increase in the organization and coordination of criminal activities in different parts of the state of São Paulo. Even more

worryingly, these activities have gained strength in other areas of the country and have involved neighboring countries in the Southern Cone.

The group's operation outside São Paulo state consists of the formation of criminal cells under other names, which are nevertheless under the leadership of the São Paulo group. There are two kinds of connections: association with local criminals, with exchange of personnel, arms, and drugs; and legal and financial support to relatives of detainees through a monthly payment and a commitment of loyalty to the group when the individual is released from prison (Folha de São Paulo 2011; see also Feltran et al. 2010; Hisayasu 2016b). As Antonio Sampaio (2017, 45) affirms, "the PCC had until then [October 2016] enjoyed a seemingly smooth relationship with smaller criminal groups, operating as a well-organised business and avoiding territorial gang wars that draw the wrath of state forces".

One of the main triggers of the PCC's association with criminals in other states was the misconceived public policy against the group. After 2006, more stringent repression, including the transfer of key PCC members to federal penitentiaries far from São Paulo (albeit without isolation from other criminals), was put into practice. Marcola himself has passed through the prisons of Rio Grande do Sul, the Federal District, Goiás, and Minas Gerais. During his visit to Brasilia, he created the *Partido do Direito e Liberdade* (Freedom and Right Party—PLD), a violent faction that even charred enemy detainees during rebellions (Gentili 2017).

The result could not have been different: the collateral effect of the policies was the interaction of locals and disorganized criminals with a group with a statute, a culture, and a clear proposal to struggle for detainee's rights. Numerically, the impact of this PCC leadership expansion "sponsored" by the state is astonishing: according to wiretapping conducted by Brazilian prosecutors, the PCC has 'baptized' (*batismo* is the term used by PCC itself to describe new enrollments) 607,000 individuals during their history in the five Brazilian macro-regions, or 3.5% of current detainees in the country, in which around 20,000 are operatives (Lessing and Willis 2018, 2).

Among this impressive number of *batizados* acquired throughout PCC's history, it is expected that some have since died or defected from the group. Even if the numbers are much lower, there is still the continued operation of a huge number of members that contribute through the workforce and financially. Grounded in data provided by criminal prosecutors, it can be affirmed that 80% of PCC profits comes from drug trafficking of approximately 40 tons of cocaine/year, totalizing US$200 million/year. The remaining 20% of their profits result from bank robberies, kidnappings, arms trafficking, raffles for detainees, and the monthly stipend (around R$900,00 or currently US$200.00) paid by 7000 prisoners and families in exchange for protection. As an example, in a PCC financial sheet confiscated by police recently, the payment of R$1.8 million for lawyers was recorded in São Paulo state alone (see more in Lessing and Willis 2018; Hisayasu 2016a).

Thus, according to public procurator Márcio Sérgio Christino, in the last 10 years PCC:

> not necessarily has grown, but has changed. They had a more limited profile, more politicized, with a discourse in defense of the rights of the prison population. Over time and with criminal actions, the 'party' has mutated until where it has now arrived, with a dynamic like a large company, but with a focus on trafficking, which allows continuous collection [of funds] (Christino cited by Hisayasu 2016a).

This economic expansion has gone hand-by-hand with the geographic dissemination of PCC. As affirmed by Hisayasu (2016b):

> …the financial power of the PCC directly reflects in its geographical power. As the organization's revenues grow, so do its territorial boundaries. While in 2013, after three and a half years of investigations, the State of São Paulo Prosecutors concluded that the faction spread to 22 states, the Federal District, Bolivia and Paraguay, today the PCC is present in all 27 units of the Brazilian federation and already has bases in Argentina, Peru, Colombia and Venezuela.

The expansion led to the creation of bonds with local drug traffickers, who in turn gained influence in the 'party'. The script was similar to PCC expansion in prisons: without the same mission, organization, financial, and human resources structure, groups and powerful criminals were gradually absorbed by the group. Firstly, PCC projected its power in the states around São Paulo, mainly the ones bordering Paraguay, Peru, and Colombia where, according to Justice figures, it operated even before 2006 (MPE-MT 2014). The next step inevitably would be the internationalization of the criminal organization.

In their ethnographic research on crime on borders, Oliveira and da Costa (2012: 144) note that PCC has been operative on the Brazil-Bolivia borders since 2001. However, it was only in 2006 that PCC's international links were first publicized by authorities, especially when the former governor of São Paulo state, Claudio Lembo, recognized that "(…) the existence of this organization is not a local phenomenon of São Paulo, neither national: it is international" (ABC Digital 2011).

Estado de São Paulo published a comprehensive newspaper series of articles to mark 10 years since the 2006 attacks, grounded in interviews with public prosecutors and judicial investigation reports. In this series, journalist Alexandre Hisayasu expressed the view that PCC is currently operative in the whole of Brazil and has branches in at least 8 countries: Venezuela, Colombia, Peru, Bolivia, Paraguay, Argentina, Portugal, and Holland (Hisayasu 2016b).

After expanding to states bordering Paraguay, PCC began to operate in Paraguay itself, as it is an important country strategically for drug trafficking. In 2005, the Brazilian Federal Judge Odilon Oliveira, Ponta Porã (a city bordering Paraguay), displayed video recording evidence that FARC members were carrying out kidnapping training for PCC (United States 2008). The Colombian guerrilla had started to negotiate cocaine with two Brazilian gang leaders established in Paraguay, Luiz Carlos da Rocha (a.k.a. Cabeça Branca, arrested in 2017) and Carlos Roberto da Silva (a.k.a. Charles), who were both serving CV and PCC during this period (Pinheiro 2006: 40). It was the first clear evidence of the transnationalization of the Brazilian violent non-state group.[7]

The next step was to install one of its leaders there. Fabiano Alves de Souza (a.k.a. Paca), one of the *sintonia fina geral,* has lived in Paraguay since at least 2014, according to the São Paulo prosecutors (Hisayasu 2016b). Also in 2014, the Anti-Drugs Coordinator of the Brazilian Federal Police, Cassius Baldelli, reported that PCC had "started to set up cocaine processing laboratories near the Bolivian border – a break

[7] Furthermore, Paraguay is key for PCC arms supply, as demonstrated by justice investigations in recent years by the Public Prosecution Office (Procuradoria Regional da República 2011).

from the previous status of Brazilian groups as primarily buyers of products from other gangs" (Sampaio 2017, 45).

The structuring of the PCC in the State of São Paulo allowed them to control one of the two main drug export routes in the world, which starts with the transportation of the drug from Paraguay to the main port of Brazil, in Santos. In 2014, a Federal Police operation arrested PCC leaders who planned to ship drugs via containers to Europe and Mexico (Procuradoria Geral da República 2014). According to the Attorney General Office in São Paulo, PCC operated in two cells, one of which was responsible for buying drugs in Colombia and Peru, and another that was in charge of logistics at the Port of Santos (MPF-SP 2015). This PCC operation via the Port of Santos was labeled 'little princess' and was "in line with recent findings by the UNODC, whose World Drugs Report 2016 singled out Brazil as the most frequently cited country as a point of departure for shipments of cocaine to Africa, Asia, and Europe" (Sampaio 2017, 46).

In Europe, the Italia mafia 'Ndrangheta, an ally in PCC business, according to Brazilian justice, is in charge of the distribution of drugs (MPF-SP 2015; Sampaio 2017). Until 2016, according to the Federal Police, the intermediary between PCC and local producers of cocaine in Peru, Bolivia, and Colombia was José Esteyman Poveda, who was arrested in a cooperative operation of the Colombian and Brazilian police in July 2016. He was responsible for sending more than 7.5 tons of cocaine to the Netherlands in 2015 alone (Ribeiro 2016).

This well-designed internationalization of the PCC to Paraguay brought violent clashes with rivals and even the ambush of politicians. One important episode of violence conducted by this non-state actor was the attempted murder in April 2010 of Roberto Acevedo, a Paraguayan senator with a devoted agenda against drug trafficking. The attack, involving more than 30 rifle shots, resulted in the deaths of the senator's driver and bodyguard (Paro 2010).

Another episode of violence was the impressive attack against the Brazilian businessman Jorge Rafaat Toumani. Although the businessman was a prominent owner of tires and construction material shops, a series of investigations in Brazil linked him to drug trafficking and money laundering (König and Dyniewicz 2016). Toumani had been the target of three attempted murders, all of them probably linked to control of drug trafficking on the Brazil-Paraguay border. In June 15, 2016, the fourth attempt had success: an ambush involving approximately 100 mercenaries serving PCC, using arms usually exclusive to the armed forces, like anti-missile caliber .50 and rifles, transformed the downtown of Pedro Juan Caballero (Paraguay) into a war zone. Despite being inside an armored SUV, Toumani could not resist the attack after being shot several times. After his killing, the battle continued for 4 hours, resulting in the burning of Toumani's shops and clashes between PCC mercenaries and the businessman's bodyguards (König and Dyniewicz 2016; Benites 2016; Gagne 2016).

Both the Acevedo and Toumani attacks had one common objective: the elimination of enemies that could affect PCC's control of drug trafficking in Brazil and even abroad. Furthermore, the attack that killed Toumani is seen as a turning point that began a war between PCC and CV (*Comando Vermelho*) (see Martín 2016). Although the PCC statute founded 10 years ago expressed that CV was an ally "in the revolution of prisons" and an armed branch that would become "the terror of the powerful" (CMI 2006), this alliance changed with Toumani's killing because it represented an advance by PCC in the Paraguay drug business.

Given PCC is used to operating in a market monopoly, as it does in São Paulo state, the CV's disorganization and concern with competitors in the Rio gang war are now seen as an obstacle. According to justice investigations, the split between the two largest criminal factions in Brazil are justified because of the CV's unpaid debts from buying drugs and weapons, the armed conflict between CV and two other factions in the *favelas* of Rio, and the association of CV with rival criminals of PCC in the North and Northeast of Brazil (Martín 2016; Alessi 2016). According to an expert in public security in Brazil, Eduardo Fernandes, in this brutal war:

> The CV has a large branch among other factions and has fought the expansionism of the PCC in search for new markets. Where the PCC tries to enter, it arouses the interest of competitors. It is a territorial and market dispute that reflects inside the prisons, because there, when they enter, prisoners need to join in order to survive (Fernandes cited by Sochero 2017).

Consequently, this clash with CV has brought about a violent conflict that affects not only Paraguay, but also North Brazil. Four months after Toumani's killing, violent clashes in prisons began, killing dozens of people. The first was the October 16, 2016 riot in the Monte Cristo Agricultural Penitentiary in the state of Roraima, where 10 prisoners died—2 of them were beheaded—and 7 of whom were members of CV, including their leader in North Brazil, Waldiney Souza (Clavel 2016; Alessi 2016). In the following 6 days, *Família do Norte* (Family of North—FDN, an ally of CV in North Brazil) killed 12 more detainees linked to PCC in Rio Branco and Porto Velho penitentiaries (LaSusa 2016; Stochero 2017).

Then, in January 2017, unprecedented violence between PCC and competitors broke out. In only 15 days, 106 prisoners were killed in rebellions in Manaus, Natal, and Puraquequara. The most brutal attack was leaded by FDN on the first day of 2017, in which 56 detainees, probably linked to PCC, were killed and the corpses quartered and burned (Stochero 2017; Soto 2017). Instead of suggesting clear policies to deal with a brutal violence, the state response by the former Brazilian Ministry of Justice, Alexandre de Moraes,[8] was the same both in 2016 and 2017: minimize the conflict saying that it was not a gang war and suggest unclear policies to deal with a complex challenge (Olliveira 2016; Weterman 2017).

Beyond revenge, the conflict in North Brazil prisons is actually also part of a drug market competition, demonstrating that the Amazon drug route would not be easily controlled by PCC. The largest city in North Brazil, Manaus, is a trafficking hub to send drugs to Europe and West Africa (LaSusa 2016). Smaller gangs compared to the PCC have operated drug trafficking in North Brazil on what is known as the Solimões route, and was recently allied to CV, like FDN.

It is exactly the control of the Solimões route that was at stake in the violent clashes in prisons in October 2016 and January 2017. Given the PCC monopolizes the route from Paraguay-Santos-Europe, the group sees the control of this route as having high

[8] Appointed to the Brazilian Supreme Court in February 2017, Moraes served also as Secretary of Public Security of São Paulo state (2015–2016). As a lawyer, he defended Transcooper, a cooperative of public transportation accused to be a front company to PCC's money laundering. Although there is an ethical discussion about a Minister of Supreme Court that has served as lawyer of a criminal company, there are no proven links between Moraes and PCC. For an analysis of this topic, see Miranda (2017).

profitability and key proximity with producers like Peru and Colombia, as the next step for expansion of its drug business (Neher 2017; Sampaio 2017). Therefore, as comprehensively explained by one of the main journalists covering PCC operation in recent years:

> To achieve absolute hegemony in the country, the faction [PCC] works to build a network of contacts and strengthen itself in strategic points of Brazil: in the North, the focus is the states bordering with cocaine producing countries, such as Bolivia, Peru and Colombia (...). It is precisely in Mato Grosso do Sul and Paraná that border with the neighboring country [Paraguay], that the PCC's influence is stronger outside São Paulo (Alessi 2017).

Henceforward, it is expected that violence to control the Solimões route will continue. Firstly, this is because there is no evidence that FDN could ally to PCC in the near future, especially after the violence seen in January 2017. Second, there is a real possibility of PCC expansion towards FARC dissidents, after the peace accord signed in 2016. According to Colombian Defense Minister Luis Carlos Villegas in an interview with The Wall Street Journal, the PCC is courting FARC dissidents to obtain heavy weapons and military training, while also hoping to expand into Colombian territory (Goi 2017; Jelmayer et.al 2017). The problem is that the conflict could become even more bloody in the next few months or years, given that "Colombia's southeast border is highly competitive criminal territory" and "PCC will likely confront other organized crime groups that are looking for ways to fill the power vacuum created by the FARC's demobilization" (Goi 2017).

Final remarks

In tracing the evolution of PCC, it is noticeable that the group has undergone intense transformations since it first violent acts became known to the public in the rebellions of 2001 and the 2006 attacks. Beginning as group advocating human rights in São Paulo state penitentiaries, it has now transformed into a complex transnational violent non-state actor that controls one of the main drug export trafficking routes in the world. While the objectives changed, the ideological principles remained: a fraternity among baptized members remains both inside and outside prisons. This loyalty as principle is now not confined to organizing the prisons, but also to organizing drug trafficking and violence against enemy groups. This can be clearly seen in the brutal violent clashes to control another key drug route along the Solimões River.

Throughout its history, the PCC has been provided with a fertile ground for crime, especially through the high level of poverty and cultural violence of the state seen in *favelas* and poor areas. Without social justice, crime-based justice finds room to advance. PCC has established their *debates* and its culture of violence and fear beyond prisons, combining a code of conduct with an organized system to collect funds through drug trafficking, extortion, and paid protection. In fact, the PCC has replaced the state in some areas through an effective use of violence, disseminating fear, and alternative methods of governance.

Building a more harmonious Brazilian society will be even more difficult with the growth of PCC given it is a transnational violent non-state actor with powerful "sustained coercive capabilities for organized violence" (see Mandel 2013, 42). More worryingly, this organized violence operates not only directly, but also by taking advantage of structural violence to monopolize the drug market and create a new culture for criminals. Therefore, analyzing PCC operations shows that it is on a level beyond an ordinary crime gang. This is the dominance of a group substituting the state—even territorially, as shown by Biderman et al. (2014)—and in conflict with other groups, providing a violent scenario in different parts of Brazil and neighbor countries for the immediate future.

In such a scenario, public security forces must urgently utilize good quality data in their intelligence sector. Today, there is a great need for cooperation and shared capacity building among the states of the Brazilian federation, as well as with neighboring countries, given PCC is now a transnational problem. To minimize the problem, the approach advocated by former Ministry of Justice Alexandre de Moraes only allows for a more ambitious PCC expansion.

This challenging scenario cannot be dealt with using simple responses. The presence and lethality of PCC has reached such gravity that a law and order approach needs to be combined with a comprehensive approach. A starting point would be for the state to take control of the prisons, combined with a presence in *favelas* and poor areas through social policies and public participation that make crime a less attractive option for youth. While this plan can be seen as utopic, the reality is that a law and order approach will not solve the problem, nor will just expanding prisons without a clear strategy to transform detainee behavior. Complex problems demand comprehensive responses, especially to confront a powerful VNSA that operates across national borders.

Funding This research was funded by NewtonGrant/British Academy (United Kingdom), Grant # NMG2R2\100064. The author is very grateful to the reviewers for the suggestions and comments for improving the article.

Compliance with ethical standards

Conflict of interest Marcos Alan S. V. Ferreira declares that he has no conflict of interest.

Ethical approval This article does not contain any studies with human participants performed by any of the authors.

Publisher's note Springer Nature remains neutral with regard to jurisdictional claims in published maps and institutional affiliations.

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